PROFESSIONAL SERVICES AGREEMENT

This Professional Services Agreement ("Agreement") is made by and between American Traffic Solutions, Inc., doing business as Verra Mobility, ("Verra Mobility") and the Town of Davie ("Town").

WHEREAS, the Florida Legislature enacted Florida Statute Section 316.1896, which authorizes municipalities to utilize speed detection systems to issue traffic infractions in school zones;

WHEREAS, the Town has authorized the use of school zone speed detection systems to augment the Town of Davie Police Department;

WHEREAS, Verra Mobility is a nationally recognized and trusted organization that operates red light safety cameras and speed detection systems throughout the United States of America;

WHEREAS, the Town has been utilizing the professional services of Verra Mobility to operate the red light safety camera program since 2011;

WHEREAS, due to the long standing relationship between the Town and Verra Mobility both parties are desirous of entering into a Professional Services Agreement for the operation of red light safety cameras and speed detection systems as defined here.

NOW, THEREFORE, for good and valuable consideration, the sufficiency of which is hereby admitted and acknowledged, the parties agree as follows:

I. DEFINITIONS

As used in this Agreement, the following words and terms shall, unless the context otherwise requires, have the respective meanings provided below:

"Approach": One (1) direction of travel on a road including up to four (4) contiguous lanes and, if applicable, controlled by up to two (2) signal phases, on which a Camera System may be installed upon the mutual agreement of the parties.

"Back-Office System"* or *"BOS": The proprietary back-end system that processes Events and Violations, including the printing and mailing of Citations, the generation of evidence packages, and that provides system generated reports of Violation counts.

"Business Hours": Eight (8) hours per day, Monday through Friday, excluding weekends and holidays.

"Business Rules": The Business Rules Questionnaire to be completed by Town and delivered to Verra Mobility setting forth the business rules for the implementation and operation of the Program.

"Camera System" or ***"Camera"***: A photo-traffic monitoring device consisting of one (1) rear camera, strobe (if applicable), and traffic monitoring device (including the wiring associated with each) capable of accurately detecting a Violation, which records such data with one (1) or more images of such vehicle. "**Camera System**" may refer to either a Red Light Safety Camera System or a Fixed School Safety Camera Speed Detection System, or a Transportable School Safety Camera Speed Detection System, depending on the context.

"Change Order Notice": Written notice from Town requesting changes to the work required to be performed or the addition of products or services to those required pursuant to the terms of this Agreement, setting forth in reasonable detail the proposed changes.

"Change Order Proposal": A written statement from Verra Mobility describing the cost of the changes to the work or addition of products or services requested by Town in a Change Order Notice.

"Citation": A citation, notice of violation, notice of infraction, notice of liability or equivalent instrument issued by a competent state, county or municipal law enforcement agent or agency or by a court of competent jurisdiction relating to a Violation documented or evidenced in the BOS.

"**Designated Safety Zone**": A designated safety zone in which a Camera System may be installed or deployed.

"Event": A potential Violation captured by the Camera System.

"Fees": The amount payable by Town to Verra Mobility for equipment, services, and maintenance as set forth in **EXHIBIT A**.

"Fixed School Safety Camera Speed Detection System": A Camera System that uses radar, or other vehicle detection technology, to capture the speed of a motor vehicle and generates recorded images of an Event and is installed on a mutually agreed upon Approach.

"Laws": All federal, state, or local, laws, ordinances, regulations, and orders.

"Notice to Proceed": Written confirmation from Town that Verra Mobility may proceed with the installation or deployment of a given Camera System, a form of which is attached as **EXHIBIT C**.

"Owner": The owner(s) of a motor vehicle as shown by the motor vehicle registration records of the motor vehicle department or the analogous agency of another state or country, including a lessee of a motor vehicle under a lease of six months or longer.

"Paid Citation": A situation where the Person cited has paid any portion of the penalty, fine, funds, fees or costs associated with the particular Citation.

"Person" or ***"Persons"***: Any individual, partnership, joint venture, corporation, limited liability company, trust, unincorporated association, governmental authority or political subdivision thereof or any other form of entity.

"Photo Enforcement Infrastructure": The poles, foundation, conduit, and other below-grade infrastructure associated with installing Camera Systems.

"Program Revenue": Any gross penalty, fine, funds, fees or costs paid by a violator for any reason related to any Violation.

"Project Time Line": The initial schedule and timelines required to begin the implementation of Town's project, as mutually agreed upon by the parties. The initial project timeline will be prepared assuming the active cooperation and engagement of the Program stakeholders set forth in Section 2.1.1 of **EXHIBIT B.**

*"**Red Light Safety Camera System**"*: A Camera System that uses vehicle detection technology to capture a vehicle traversing a red light traffic signal and generates recorded images of an Event and is installed on a mutually agreed upon Approach.

"System": A Camera System and the related Photo Enforcement Infrastructure.

"School Safety Camera Speed Detection System". A Camera System, located within a school zone, that uses radar, or other vehicle detection technology, to capture the speed of a motor vehicle and generates recorded images of an Event and is installed on a mutually agreed upon Approach.

"Transportable School Safety Camera Speed Detection System": A Camera System, which is capable of capturing speed Events, capable of being moved from a Designated Safety Zone to another.

*"**Violation**"*: A failure to obey an applicable traffic law or regulation related to a failure to obey a traffic signal or related to operating a motor vehicle in excess of the posted speed limit, as determined in Town's sole discretion.

II. GENERAL TERMS AND CONDITIONS

1. VERRA MOBILITY AGREES TO PROVIDE:

The scope of work identified in **EXHIBIT B**, Section 1.

2. TOWN AGREES TO PROVIDE:

The scope of work identified in **EXHIBIT B**, Section 2.

3. TERM:

This Agreement shall commence upon the Effective Date and shall continue for a term of five (5) years. This Agreement may be administratively extended for an additional five (5) year term upon sixty (60) day written notice by both parties.

4. FEES AND PAYMENT:

4.1 Town shall pay for all equipment, services and maintenance based on the fee schedule indicated in **EXHIBIT A**, Service Fee Schedule 1. Payments for Fees shall be made via Automated Clearing House (ACH).

4.2 Invoices shall be in standard Verra Mobility format and provided electronically.

4.3 Town shall pay all Fees due to Verra Mobility based upon invoices from the preceding month within forty-five (45) days of submission. Late payments may be subject to interest calculated at 1.5% per month on open balances.

4.4 Verra Mobility shall work with the Town Budget and Finance Department and register with the Town's Automated Clearing House (ACH) payment system.

5. COMMUNICATION OF INFORMATION:

Verra Mobility will comply with reasonable requests from Town for information obtained by Verra Mobility through operation of the Camera Systems or the BOS. Verra Mobility reserves the right to assess a fee for such services if such information is requested by a third-party or if Town could not retrieve the information from the BOS without the assistance of Verra Mobility. Verra Mobility will not be under any obligation to provide information directly to non-Town requesting parties. For any non-Town requests for information, Verra Mobility shall work collaboratively with Town to provide requested information in a timely manner to Town. Nothing in this paragraph shall be construed contrary to the terms and provisions of any public records laws, insofar as they may be applicable.

Public Records: As required by section 119.0701, Florida Statutes, Verra Mobility hereby specifically agrees to comply with the public records laws of the State of Florida. Verra Mobility specifically agrees to:

(i) Keep and maintain public records as required by the Florida Statutes.

(ii) Upon request from the Town Clerk, provide the Town of Davie with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in the applicable Florida Statutes.

(iii) Ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the Agreement term and following completion of the Agreement if Verra Mobility does not transfer the records to the public agency.

(iv) Upon completion of the Agreement, Verra Mobility shall transfer, at no cost to the Town, all public records in possession or keep and maintain public records required by the Town to perform the service. If Verra Mobility transfers all public records to the Town, upon completion of the Agreement, Verra Mobility shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If Verra Mobility keeps and maintains public records upon completion of the Agreement, Verra Mobility shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to the Town, upon request from the Town Clerk, or his/her designee, in a format that is compatible with the information technology systems of the Town.

If Verra Mobility has questions regarding the application of Chapter 119, Florida Statutes, to Verra Mobility's duty to provide public records relating to this contract, contact the custodian of public records at 954-797-1000, Evelyn_Roig@Davie-FL.gov, 8800 SW 36th Street, Davie, FL 33328.

6. CONFIDENTIALITY:

No information given by Verra Mobility to Town will be of a confidential nature, unless specifically designated in writing as proprietary or confidential by Verra Mobility ("Verra Mobility Confidential Information"). If, however, Verra Mobility does designate certain information as proprietary or confidential, Town shall treat the Verra Mobility Confidential Information with the same degree of care and same restrictions as Town treats its own proprietary and confidential information, but in no event with less than reasonable care and reasonable restrictions. Town will use Verra Mobility Confidential Information solely in connection with its rights and obligations under this Agreement, and will not use Verra Mobility Confidential Information for any other purpose, including, if Town receives a request or becomes legally obligated or compelled (by deposition, interrogatory, request for documents, subpoena, civil investigative demand, other demand or request by a governmental agency, or the application of statutes, rules or regulations) to disclose any of the Verra Mobility Confidential Information, Town will promptly provide Verra Mobility with written notice of such request or requirement before any disclosure, and will cooperate with Verra Mobility's reasonable efforts to obtain confidential treatment of the Verra Mobility Confidential Information. Town will give Verra Mobility an opportunity to review the Verra Mobility Confidential Information prior to its disclosure, and Town will allow Verra Mobility to participate in any related proceeding. Nothing in this paragraph shall be construed contrary to the terms and provisions of any public records laws, insofar as they may be applicable.

7. PROPRIETARY RIGHTS:

7.1 Back-Office System: Verra Mobility's proprietary BOS is software-as-a-service. Under all circumstances, Verra Mobility shall retain ownership of the BOS and all associated intellectual property rights, including any modifications, configurations, improvements, enhancements, upgrades, or further developments of the BOS, even if modified, configured, improved, enhanced, upgraded, or further developed at the request, feedback, or recommendation of the Town. Under no circumstance will any modifications, configurations, improvements, enhancements, upgrades, or further developments of the

BOS be considered "Work for Hire" for Town. Town agrees not to copy, rent, lease, sell, distribute, or create derivative works based on the BOS or related documentation in whole or in part, by any means except as expressly authorized in writing by Verra Mobility. During the term of our Agreement with Town, Verra Mobility grants Town a non-exclusive, non-transferable, revocable license to access and use the BOS for the sole purpose of Town performing its obligations under this Agreement.

7.2 Systems: Under all circumstances, Verra Mobility shall retain ownership of all Camera Systems and all associated intellectual property rights. On and as of the date of termination of this Agreement, Town shall be deemed to accept and receive full ownership and control of the Photo Enforcement Infrastructure.

7.3 Public Safety Campaign and Public Awareness: As between the parties, Verra Mobility owns and retains all rights, title and interest in and to the Public Safety Campaign Content, if any, created by Verra Mobility and all intellectual property rights therein, excluding all Town Content. "Public Safety Campaign Content" means all content, trademarks, service marks, works of authorship, products, software, software code, databases, technology, information, data, specifications, documentation, algorithms, technical and business plans, and other materials of any kind, and all intellectual property rights therein produced by Verra Mobility for a Public Safety Campaign pursuant to **EXHIBIT B**. Verra Mobility grants to Town a perpetual, revocable, non-transferable, and non-exclusive license to use, copy, display, and distribute the Public Safety Campaign Content solely to promote Town's photo enforcement programs, and to modify the Public Safety Campaign Content as needed for formatting for exercise of the license granted.

7.4 In order to produce the Public Safety Campaign Content, Town grants Verra Mobility a non-exclusive, fully paid-up, license to use, reproduce, distribute, perform, practice and display, and to create derivatives of all content, trademarks, service marks, works of authorship, products, software, software code, databases, technology, information, data, specifications, documentation, algorithms, technical and business plans, and other materials of any kind, and all intellectual property rights therein provided to Verra Mobility ("Town Content") solely for Verra Mobility to (i) create the Public Safety Campaign Content, and (ii) provide services to Town. Town has the ability to approve use of any Town Content in the Public Safety Campaign Content. In order to carry out the purposes of this Agreement, for the term of this Agreement, Verra Mobility grants Town a non-exclusive, non-transferable, revocable license to use and display Verra Mobility information, including Verra Mobility trademarks, provided by Verra Mobility on or in marketing, public awareness or education, or other publications or materials relating to the Program, so long as any and all such publications or materials are approved by Verra Mobility in advance of use.

7.5 Data Use: Verra Mobility shall retain the ownership rights to all metadata, business intelligence, or other analytics obtained, gathered, or mined by Verra Mobility from the data captured by the Camera Systems and the BOS, including through the Enhanced Video Services, as defined in **EXHIBIT B**. Furthermore, Verra Mobility has a right to use non-

personalized and aggregated Program data for its internal business purposes, analytics, statistical analysis, and to perform analyses which would further Town's Program.

7.6 Public Disclosure: Verra Mobility Corporation, the ultimate parent company in the corporate family, is a public company registered with the U.S. Securities and Exchange Commission (SEC) with shares of its common stock listed on the NASDAQ. Nothing in this Agreement shall be construed to limit Verra Mobility's or Verra Mobility Corporation's ability to comply with our disclosure obligations as interpreted by our attorneys and accountants under applicable, laws, rules, and regulations of the SEC or the NASDAQ.

8. INDEMNIFICATION AND LIABILITY:

8.1 Indemnification by Verra Mobility. Verra Mobility agrees to indemnify Town and its managers, officers, directors, employees, agents, representatives and successors (individually, a "Town Party" and collectively, the "Town Parties") against all liabilities, obligations, losses, damages, penalties and judgments (collectively, "Losses"), which may be imposed on or incurred by any Town Party arising out of or related to the gross negligence of, willful misconduct of, or material breach of this Agreement by Verra Mobility, which results in death or bodily injury to any natural person (including third parties) or any damage to any real or tangible personal property (including the personal property of third parties), except (i) to the extent caused by the gross negligence of, willful misconduct of, or material breach of this Agreement by any Town Party, or any claim, action or demand (a "Claim") caused by Town's failure to perform its obligations under this Agreement. In the event the Town is subject to a lawsuit concerning the legality in operating the School Safety Camera Speed Detection System, Verra Mobility agrees to cooperate with the Town in its defense by providing records Verra Mobility holds related to the Program or a Verra Mobility expert witness, if required.

8.2 Indemnification by Town. Town hereby agrees to indemnify Verra Mobility and its affiliates, shareholders or other interest holders, managers, officers, directors, employees, agents, representatives and successors, permitted assignees and all Persons acting by, through, under or in concert with them (individually, an "Verra Mobility Party" and collectively, the "Verra Mobility Parties") against any and all Losses which may be imposed on or incurred by any Verra Mobility Party arising out of or related the gross negligence of, willful misconduct of, or material breach of this Agreement by the Town which results in death or bodily injury to any natural person (including third parties) or any damage to any real or tangible personal property (including the personal property of third parties), except (a) to the extent caused by the gross negligence of, willful misconduct of, or material breach of this Agreement by any Verra Mobility Party or (b) any Claim caused by Verra Mobility's failure to perform its obligations under this Agreement. Upon the termination of this Agreement, Town agrees to indemnify Verra Mobility Parties against any and all Losses which may be imposed on or incurred by any Verra Mobility Party arising out of or related to any Claim related to the Photo Enforcement Infrastructure. The Town expressly retains all rights, benefits and immunities of sovereign immunity in accordance with section 768.28, Florida Statutes, as amended. Notwithstanding anything set forth in the Contract to the contrary, nothing in this Contract shall be deemed as a waiver of immunity or limits of liability of the Town beyond any statutory limited waiver of immunity or limits of liability which may have been or may be adopted by

the Florida Legislature and the cap on the amount and liability of the Town for damages, regardless of the number or nature of claims in tort, equity, or Contract, shall not exceed the dollar amount set by the legislature for tort. Nothing in this Contract shall inure to the benefit of any third party for the purpose of allowing any claim against the Town, which claim would otherwise be barred under the doctrine of sovereign immunity or by operation of law.

8.3 Indemnification Procedures. In the event of any Claim in respect of which any party hereto seeks indemnification from the other, the party seeking indemnification (the "Indemnified Party") shall give the party from whom indemnification is sought (the "Indemnifying Party") written notice of such Claim promptly after the Indemnified Party first becomes aware thereof; provided, however, that failure to give such notice shall not preclude indemnification with respect to such Claim except to the extent of any additional or increased Losses or other actual prejudice directly caused by such failure. The Indemnifying Party and the Indemnified Party shall cooperate in the defense or settlement of any Claim and no party shall have the right to enter into any settlement agreement that materially affects the other party's material rights or material interests without such party's prior written consent, which consent shall not be unreasonably withheld or delayed.

8.4 Limited Liability. In no event shall Verra Mobility's liability under this Agreement exceed the greater of $1,000,000 or the average of the prior twelve (12) months of Fees paid by Town pursuant to this Agreement. Notwithstanding anything to the contrary in this Agreement, neither party shall be liable to the other, by reason of any representation or express or implied warranty, condition or other term or any duty at common or civil law, for any indirect, incidental, special, or consequential damages, or lost profits, lost fines, or lost data however caused and on any theory of liability, arising out of or relating to this Agreement.

9. INSURANCE:

Verra Mobility shall maintain the following minimum scope and limits of insurance:

9.1 Commercial General Liability Insurance including coverage for bodily injury, property damage, premises and operations, products/completed operations, personal and advertising injury, and contractual liability with a combined single limit of $1,000,000 per occurrence.

9.2 Workers' Compensation as required by applicable state law, and Employer's Liability Insurance with limits of not less than $500,000 each accident. Verra Mobility shall at all times maintain Worker's Compensation insurance coverage in the amounts required by Law, but shall not be required to provide such coverage for any actual or statutory employee of Town.

9.3 Commercial Automobile Liability Insurance for all owned, non-owned and hired automobiles and other vehicles used by Verra Mobility with a minimum $1,000,000 combined single limit bodily injury and property damage.

9.4 Town shall be named as additional insured on the Commercial General Liability insurance policy provided by Verra Mobility under this Agreement.

9.5 Certificates showing Verra Mobility is carrying the above-described insurance shall be furnished to Town within thirty (30) calendar days after Town request.

Town shall maintain the following minimum scope and limits of insurance:

9.6 Commercial General Liability insurance including coverage for bodily injury, property damage, premises and operations, products/completed operations, personal and advertising injury, and contractual liability.

9.7 Worker's Compensation coverage as required by applicable state law and Employer's Liability Insurance.

10. LIMITED WARRANTY:

THE TOWN ACKNOWLEDGES THAT AT TIMES SUCH SYSTEMS AND RELATED EQUIPMENT AND SOFTWARE MAY MALFUNCTION OR OTHERWISE NOT OPERATE AS ANTICIPATED. VERRA MOBILITY SHALL DILIGENTLY ENDEAVOR TO CORRECT ANY SUCH MALFUNCTION IN A TIMELY MANNER.

11. STATE LAW TO APPLY:

This Agreement shall be construed under and in accordance with the laws of the State of Florida.

12. DISPUTE RESOLUTION:

12.1 All disputes arising out of or in connection with the Agreement shall be attempted to be settled through good-faith efforts between senior management of both parties. Following thirty (30) days of unsuccessful negotiation, the parties shall participate in professionally-assisted mediation, with a mediator acceptable to both parties. The parties agree to discuss their differences in good faith and to attempt, with the assistance of the mediator, to reach an amicable resolution of the dispute. The mediation will be treated as a settlement discussion and therefore will be confidential. The mediator may not testify for either party in any later proceeding relating to the dispute. No recording or transcript shall be made of the mediation proceedings. Each party will bear its own costs in the mediation. The fees and expenses of the mediator will be shared equally by the parties.

12.2 Failing resolution through negotiation or mediation, any remaining dispute shall be submitted to binding arbitration in accordance with the Arbitration Rules for Professional Accounting and Related Services Disputes of the American Arbitration Association ("AAA Rules") before a single arbitrator. The place of arbitration will be mutually agreed upon within fourteen (14) days of a decision to seek arbitration. Limited discovery will be permitted in connection with the arbitration upon agreement of the parties and upon a showing of substantial need by the party seeking discovery.

12.3 The arbitrator's decision shall follow the plain and natural meaning of the relevant documents and shall be final and binding. The arbitrator will have no power to award:

a) damages inconsistent with the Agreement; or,

b) punitive damages or any other damages not measured by the prevailing party's actual damages, and the parties expressly waive their right to obtain such damages in arbitration or in any other forum.

12.4 All aspects of the arbitration will be confidential. Neither the parties nor the arbitrator may disclose the existence, content or results of the arbitration, except as may be necessary to comply with legal or regulatory requirements.

12.5 Each party will promptly pay its share of all arbitration fees and costs, provided that such fees and costs shall be recoverable by the prevailing party as determined by the arbitrator. If a party fails to pay such share promptly upon demand, the arbitrator shall, upon written request by the other party, enter a final and binding decision against the non-paying party for the full amount of such share, together with an award of attorneys' fees and costs incurred by the other party in obtaining such decision, which decision may be entered in any court of competent jurisdiction. Except for the failure of a party to pay arbitration fees and costs that requires the arbitrator to order such payment, the parties will bear their own attorneys' fees in any matter or dispute under this Agreement.

13. TERMINATION:

13.1 Verra Mobility's services may be terminated:

(i) By mutual written consent of the parties; or

(ii) For material breach of this Agreement by either party, where the other party fails in any material way to perform its obligations under this Agreement.

a) Where Town is in breach of this Agreement for non-payment of Fees to Verra Mobility, Verra Mobility may exercise any or all of the following remedies: (1) provide Town written notice and ten (10) days to cure before suspending performance and turning off the Camera Systems; (2) terminate this Agreement for cause where Town's account remains delinquent sixty (60) days after written notice; and (3) in addition to the foregoing, seek any other available remedies at law or equity.

b) Termination under this Subsection 13.1(ii) for any reason other than non-payment of Fees by Town is subject to the condition that the terminating party notifies the other party of its intent to terminate, stating with reasonable specificity the grounds therefore, and the other party fails to cure the default within forty-five (45) days after receiving written notice.

13.2 Upon termination of this Agreement, including termination for breach of contract, the parties shall take the following actions and shall have the following obligations, which survive termination during the wind-down period:

(i) Town shall cease using the Camera Systems to capture Events.

(ii) Unless it is unlawful to do so, Verra Mobility will, for a period of ninety (90) days, continue to process all Events captured before termination and provide all services associated with processing in accordance with this Agreement and shall be entitled to a monthly Fee per Camera System. After such ninety (90) day period, Verra Mobility will terminate all use of the BOS for Town's Program and upon such termination, the BOS, including Verra Mobility provided website accessible by Owners/violators, and related lockbox shall no longer be capable of accepting payments.

(iii) Except as provided for in Section 13.2(iv) related to the Photo Enforcement Infrastructure, Town shall return or allow Verra Mobility to recover all provided equipment within a reasonable time not to exceed ninety (90) days.

(iv) Pursuant to Section 7, Town shall be deemed to accept full ownership and control of the Photo Enforcement Infrastructure. Upon Town's request or if otherwise required by Law, regulation, or administrative agency, and subject to the limitations set forth herein, Verra Mobility shall remove the Photo Enforcement Infrastructure Verra Mobility installed in connection with Verra Mobility's performance of its obligations under this Agreement for the actual cost of the removal (presently estimated at approximately $5,000 per Approach) plus an additional 20% service fee (the "Removal Fee"). As part of the services performed for the Removal Fee, Verra Mobility shall restore the surface of Town's property to substantially the same condition as such property was in immediately prior to this Agreement, except for foundation removal, which shall be left approximately flush with grade with no exposed bolts, or other hazards. Installed underground Photo Enforcement Infrastructure shall not be required to be removed, and Town shall accept and observe any and all duties, obligations, or liabilities associated with the remaining foundation, conduit, or other below-grade Photo Enforcement Infrastructure.

13.3 In the event of termination by Verra Mobility for non-payment of Fees by Town, Verra Mobility shall cease processing Events as of the date of termination.

14. LIMITED AGENCY:

Town hereby grants Verra Mobility the authority to act on its behalf as a limited agent of Town, and shall cause the applicable law enforcement agency to grant Verra Mobility the authority to act as a limited agent of the law enforcement agency, for the purposes of (i) facilitating establishment of bank accounts and delivering payment/transfer instructions, if applicable; (ii) access to DMV records; and (iii) generating and administratively processing recorded images of Events as described in this Agreement and the Business Rules. Verra Mobility and its employees, contractors, agents and servants will in no event be considered to be employees, agents (other than in the limited capacity described herein), or servants of Town. This Agreement does not and shall not be interpreted as creating a general agency relationship between Verra Mobility and Town.

15. USE OF SUBCONTRACTORS:

From time to time, Verra Mobility may subcontract certain services provided under this Agreement without notice to or consent of Town.

16. DATA RETENTION:

Subject to litigation holds, court orders, changes in Law, or other legal requirements applicable to Verra Mobility, Verra Mobility shall maintain the categories of data set forth under the heading "Type of Record" for the periods of time set forth under the heading "Minimum Verra Mobility Retention Period" on **EXHIBIT E** during the term of this Agreement. Town represents and warrants to Verra Mobility that the data retention schedule provided by Town complies with the laws applicable to Town. Within one hundred-twenty (120) days of the later of the termination of this Agreement or the termination of any wind-down period, Verra Mobility shall at its option either (i) place the Violation Images, Non-Violation Images, Individually Identifiable Violation Records, and Individually Identifiable Non-Violation Records (each as described on **EXHIBIT E**), not previously disposed of in accordance with the data retention schedule at a secured location with SFTP access or (ii) provide Town with a hard-drive containing the Violation Images, Non-Violation Images, Individually Identifiable Violation Records, and Individually Identifiable Non-Violation Records, where Town shall have ninety (90) days to retrieve and validate the information. After ninety (90) days, Verra Mobility shall delete all data from the SFTP location (if applicable) and shall have no further data retention obligations to Town with respect to such data. Town acknowledges that DMV data source providers may require Town to enter into licensing agreements with the DMV data source providers in order for Town to have continued access to certain registered owner information after the termination of this Agreement.

17. ASSIGNMENT:

Neither party may assign all or any portion of this Agreement without the prior written consent of the other, which consent shall not be unreasonably withheld or delayed. However, for business financing purposes or other corporate reorganizational purposes, Verra Mobility may sell, assign, transfer or convey any interest in this Agreement in whole or in part without the written consent of Town.

18. FORCE MAJEURE:

Neither party will be liable to the other or be deemed to be in breach of this Agreement for any failure or delay in rendering performance arising out of causes beyond its reasonable control and without its fault or negligence. Such causes may include but are not limited to, acts of God or the public enemy, terrorism, significant fires, floods, earthquakes, hurricanes, epidemics, pandemics, quarantine restrictions, strikes, freight embargoes, unusually severe weather, supply-chain disruptions or governmental authorities approval delays which are not caused by any act or omission by the parties. The party whose performance is affected agrees to notify the other promptly of the existence and nature of any delay. For the avoidance of doubt, road construction is not an event of Force Majeure on behalf of the Town. The term of the Agreement shall be extended by a period equal to that during which either party's performance is suspended under this Section.

19. NOTICES:

Any notices or demand which, under the terms of this Agreement or under any statute, that must or may be given or made by Verra Mobility or Town shall be in writing and shall be given or made by personal service, overnight delivery service (e.g. Federal Express), or by certified mail to the parties at the following addresses:

Town of Davie	American Traffic Solutions, Inc.
8800 SW 36th Street	1150 North Alma School Road
Davie, FL 33328	Mesa, Arizona 85201
Attn: Town Attorney	Attn: Government Solutions Legal Dept.

20. LEGAL CONSTRUCTION:

In case any one or more of the provisions contained in this Agreement shall for any reason be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal, or unenforceable provision had not been contained herein. This Agreement shall be enforced to the maximum extent possible so as to give effect to the intent of the parties and shall be reformed without further action by the parties to the extent necessary to make such provision valid and enforceable herein.

21. AMENDMENTS TO THE AGREEMENT:

Any changes, modifications or amendments to this Agreement shall be in writing and signed by both parties.

22. INTEGRATION:

This Agreement constitutes the sole and only agreement of the parties and supersedes any prior or contemporaneous understanding, written or oral, between the parties respecting its subject matter.

23. SURVIVAL:

The following provisions of the General Terms and Conditions shall survive the termination of this Agreement: Sections 4, 6, 7, 8, 10, 11, 12, 13, 14, 16, 18, 19, 20 and this Section 23.

24. ADDITIONAL SERVICES:

During the term of this Agreement, from time-to-time Verra Mobility may propose certain new technologies for Town to consider and, if so desired, Town may procure from Verra Mobility the new technologies through an amendment to this Agreement upon terms to be mutually agreed upon by the parties.

25. EXECUTION:

This Agreement may be executed in one or more counterparts, each of which will be deemed to be an original copy of this Agreement, and all of which, when taken together, shall be deemed

to constitute one and the same Agreement. The exchange of copies of this Agreement and of signature pages by facsimile or ".pdf" transmission shall constitute effective execution and delivery of this Agreement as to the parties and may be used in lieu of the original Agreement for all purposes. Signatures of the parties transmitted by facsimile or ".pdf" shall be deemed to be their original signatures for any purpose whatsoever.

26. ADDITIONAL PROVISIONS:

Compliance with Fla. Stat. § 287.133, Public Entity Crime

Verra Mobility represents that it has not been convicted of a public entity crime. "Public entity crime" means a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid, proposal, reply, or contract for goods or services, any lease for real property, or any contract for the construction or repair of a public building or public work, involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation. Verra Mobility has reviewed and shall comply with the provisions of 287.133 of the Florida Statutes, Public entity crime; denial or revocation of the right to transact business with public entities.

Compliance with Fla. Stat. § 448.095, Employment Eligibility

Verra Mobility is required to register with and use the E-verify system in order to verify the work authorization status of all newly hired employees. Verra Mobility represents, warrants, and attests that Verra Mobility has registered for and utilizes the U.S. Department of Homeland Security's E-Verify System to verify the employment eligibility of:

a) All persons employed by Verra Mobility to perform employment duties within Florida during the term of the Subcontract; and
b) All persons (including subvendors/subconsultants/subcontractors) assigned by Verra Mobility to perform work pursuant to the Agreement. Verra Mobility acknowledges and agrees that registration and use of the U.S. Department of Homeland Security's E-Verify System during agreement is a condition of each agreement with a county, municipality, or other governmental entity or agency within the State of Florida; and
c) Verra Mobility shall comply with the provisions of Section 448.095, Fla. Stat., "Employment Eligibility," as amended from time to time. This includes, but is not limited to, registration and utilization of the E-Verify System to verify the work authorization status of all newly hired employees. Verra Mobility shall also require all subvendors/subconsultants/subcontractors to provide an affidavit attesting that it does not employ, contract with, or subcontract with, an unauthorized alien. Verra Mobility shall maintain a copy of such affidavit for the duration of the Subcontract.

Verra Mobility represents, warrants, and attests that it does not employ, contract with, or subcontract with, an unauthorized alien. Verra Mobility acknowledges that if Town has a good faith belief that Verra Mobility has violated § 448.095 Fla. Stat., Town reserves the right to terminate the Agreement immediately.

Compliance with Fla. Stat. § 287.135 and 215.473

Verra Mobility certifies by signing below that the company is not participating in a boycott of Israel. For contracts for goods or services of one million dollars or more, Verra Mobility also certifies that it is not on the Scrutinized Companies that Boycott Israel List, not on the Scrutinized Companies with Activities in Sudan List, and not on the Scrutinized Companies with Activities in the Iran Petroleum Energy Sector List or has not been engaged in business operations in Cuba or Syria. Subject to limited exceptions provided in state law, the Town will not Contract for the provision of goods or services with (i) any company participating in a boycott of Israel, and, (ii) for Contracts for goods or services of one million dollars or more, any other scrutinized company as described above. Breach of this section constitutes a material breach of this Contract.

Compliance with Broward County Ordinance § 10.01

In accordance with Section 10.01 of the Broward County Code of Ordinances, the Verra Mobility understands that this Contract may be subject to investigation and/or audit by the Broward County Inspector General. Verra Mobility understands and agrees to their obligations under this ordinance. Verra Mobility further understands and agrees that in addition to all other remedies and consequences provided by law, the failure of Verra Mobility or its subcontractors to fully cooperate with the Inspector General, when requested, may be deemed by the Town to be a material breach of the Contract justifying its termination.

Audits

The Town, or its duly authorized representatives or governmental agencies shall, until the expiration of three (3) years after the expiration of the Agreement and any extension thereof, have access to and the right to examine and reproduce any of the Contractor's books, documents, papers and records and those of its subcontractors and suppliers which apply to all matters of the Town as needed. Such records shall conform to Generally Accepted Accounting Principles requirements, as applicable, and shall only address those transactions related to the Agreement.

Access to Records

The Town reserves the right to require Verra Mobility to submit to an audit. Verra Mobility shall provide access to all of its records which relate directly to the Agreement. Verra Mobility agrees to provide such assistance as may be necessary to facilitate the review or audit by the Town to ensure compliance with applicable accounting and financial standards at no cost to the Town or to Verra Mobility.

III. LOCATION OF CAMERA SYSTEMS

1. LOCATION OF RED LIGHT CAMERA SAFETY SYSTEMS:

See **EXHIBIT F**, Section 1.
The Town Administrator shall have the authority to administratively request and approve the addition or removal of Camera's listed prior to issuance of a Notice to Proceed or if already installed and the Town Administrator requests removal of a Camera the Town shall pay Verra Mobility for its unamortized installation and construction costs, according

to the amortization schedule below, and for any proportionate amount of unpaid lump sum amount paid in advance to the Town.

In the event of termination of the Agreement prior to the end of its term for any reason, except the material breach by Verra Mobility or a court order, the Town agrees to pay Verra Mobility an early termination fee based on $37,000 per Camera System amortized over sixty (60) months on a straight-line basis from the date the Camera System is installed and operational, of which Verra Mobility will agree to reduce by 50% at the time any such payment would be required to be made as part of a shared-risk offering provided by Verra Mobility to the Town as an existing customer. For example, if the Town was to terminate the Agreement 58 months after the Camera System was installed and operational the Town would owe Verra Mobility $1,233 per Camera System pursuant to the following amortization schedule, however the Town would only be required to pay Verra Mobility $616.50 per Camera System:

	1st Year	2nd Year	3rd Year	4th Year	5th Year
Month 1	$36,383	$28,983	$21,583	$14,183	$6,783
Month 2	$35,767	$28,367	$20,967	$13,567	$6,167
Month 3	$35,150	$27,750	$20,350	$12,950	$5,550
Month 4	$34,533	$27,133	$19,733	$12,333	$4,933
Month 5	$33,917	$26,517	$19,117	$11,717	$4,317
Month 6	$33,300	$25,900	$18,500	$11,100	$3,700
Month 7	$32,683	$25,283	$17,883	$10,483	$3,083
Month 8	$32,067	$24,667	$17,267	$9,867	$2,467
Month 9	$31,450	$24,050	$16,650	$9,250	$1,850
Month 10	$30,833	$23,433	$16,033	$8,633	$1,233
Month 11	$30,217	$22,817	$15,417	$8,017	$617
Month 12	$29,600	$22,200	$14,800	$7,400	$(0)

The early termination fee above only pertains to Red Light Camera Safety Systems installed after execution of this Agreement which will be Camera Systems identified as DAV22, DAV23, DAV24 and DAV25 listed in **EXHIBIT F** below.

2. LOCATION OF SCHOOL ZONE SPEED DETECTION SYSTEM:

See **EXHIBIT F**, Section 2.

The Town Administrator shall have the authority to administratively request and approve the addition or removal of Camera's listed prior to issuance of a Notice to Proceed or if already installed, subject to the mutual agreement of Verra Mobility.

[SIGNATURE PAGE IMMEDIATELY FOLLOWS]

By signing below, the parties agree to the terms and conditions of this Agreement. Each individual signing below represents that such individual has the requisite authority to execute this Agreement on behalf of the entity which such individual represents and that all the necessary formalities have been met. This Agreement is effective on the date of execution by the last signatory to this page ("Effective Date").

ACKNOWLEDGED AND AGREED TO BY:

AMERICAN TRAFFIC SOLUTIONS, INC.

By: _____
Name: Jon Baldwin
Title: Executive Vice President, Government Solutions
Date: Jan. 4th, 2024

TOWN OF DAVIE

By: _____
Name: Judy Paul
Title: Mayor
Date:

By: _____
Name: Evelyn Roig
Title: Town Clerk

(Seal)

EXHIBIT A
SERVICE FEE SCHEDULE

1.0 **Description of Pricing**

Fees are based on per camera and are as follows:

Product Description	**Fee**
Red Light Safety Camera System – locations and camera amount listed in Exhibit "F", Section 1.	$3,800 Fixed Fee per Month per Camera System***
Fixed School Safety Camera Speed Detection System – locations and camera amount listed in Exhibit "F", Section 2.	Per Camera System fee is based on the first three (3) paid Citations per Camera System per day (based on 20 day school day month for all 12 months of the year and on $60.00 per paid Citation retained by Town) on average across all operational units and then $6.00 for each additional paid Citation (i.e. 10% of remaining Town retained Program Revenue)*

Transportable School Safety Camera Speed Detection System – the parties shall mutually agree on the number and locations of Camera Systems to be installed. Fee includes one relocation per Transportable School Safety Camera Speed Detection System per month. Verra Mobility is responsible for all aspects associated with the one relocation per month of the Transportable School Safety Camera Speed Detection System.	Per Camera System fee is based on the first four and a half (4.5) paid Citations per Camera System per day (based on a 20 day school day month for all 12 months of the year and on $60.00 per paid Citation retained by Town) on average across all operational units and then $6.00 for each additional paid Citation (i.e. 10% of remaining Town retained Program Revenue)**
Video Retrieval Fee: Verra Mobility shall retrieve up to one (1) video per week at no cost to Town. **Note:** Town shall have unlimited ability to self-retrieve video at no cost to Town through the Enhanced Video Services.	For all additional video retrievals, the fee is $10.00 each.
Certified Mailing Fee for Uniform Traffic Citation (UTC) and Subsequent Notice Mailing Fee: certified mailing of Uniform Traffic Citation (UTC) or mailings of subsequent notices in addition to those described in Subsection 1.2.3 of EXHIBIT B, is extra and will be billed per unit as published by the US Postal Service plus a per notice per page service charge.	US Postal Service cost plus $2.00 per page per notice
Service Fees: All service Fees per Camera System above includes all costs required and associated with a Camera System installation, routine maintenance, use of BOS for back-office operations and reporting, Event processing services, DMV records access, the standard set of notices as described in Subsection 1.2.3 of EXHIBIT B, lockbox and e-payment processing (excluding user convenience fee, which is paid by payor and excluding any bank account set up or monthly bank account fees), IVR call center support for general Program questions and public awareness Program support.	

*Fee Per Paid Citation – Example: Town has four (4) Fixed School Safety Camera Speed Detection Systems installed during the month of September and camera #1 has 500 Paid Citations, camera #2 has 400 Paid Citations, camera #3 has 350 Paid Citations and camera #4 has 50 Paid Citations for the month. Verra Mobility would invoice Town $20,760 for the month (three Paid Citations per day averaged across all four cameras x 20 days = 240 Paid Citations x $60 in Program Revenue retained by Town and available to pay the fee = $14,400 plus the remaining 1,060 Paid Citations averaged across all 4 cameras x $6 = $6,360 + $14,400 = 20,760).

**Fee Per Paid Citation (Transportable) – Example. Town has four (4) Fixed Speed Safety Camera Systems installed during the month of September and camera #1 has 500 Paid Citations, camera #2 has 400 Paid Citations, camera #3 has 350 Paid Citations and camera #4 has 50 Paid Citations for the month. Verra Mobility would invoice Town $27,240 for the month (4.5 Paid Citations per day averaged across all 4 cameras x 20 days = 360 Paid Citations x $60 in Program Revenue retained by Town and available to pay the fee = $21,600 plus the remaining 940 Paid Citations averaged across all 4 cameras x $6 = $5,640 + $21,600 = 27,240)

Fee Per Paid Citation – Limitations. This pricing option shall not apply if: (1) the Town elects not to pursue collections on unpaid Violations; (2) the Town waives and/or fails to timely process more than ten percent (10%) of valid Events forwarded to the law enforcement agency according to the Business Rules; (3) the Town does not institute a registration hold for Owners/violators who are liable and do not pay, if permitted by Law, (4) at Verra Mobility's option, there is a change in law or a change in the operation of the Program, which materially reduces the amount of Paid Citations per day. If this pricing is deemed not to apply, the Fee paid by Town to Verra Mobility shall be $5,400 per Camera System per month plus $6.00 per Paid Citation.

***$3,800 Fixed Fee per Month per Camera System shall only apply to a Red Light Safety Camera System that is operational and the Town is entitled to retain the first $2,000 per month per operational Red Light Safety Camera System it receives. The first $2,000 per month per operational Red Light Safety Camera System in Program Revenue received by the Town shall be excluded from the total Program Revenue per operational Red Light Safety Camera System in aggregate across all operational Red Light Safety Camera System used to determine the Program Revenue available to pay Verra Mobility its monthly fee per Red Light Camera Safety System. In the event the Town does not receive the $2,000 in Program Revenue per operational Red Light Camera System per month in aggregate across all operational Red Light Camera Systems, the deficit shall be rolled over until the deficit of the $2,000 is available to the Town. The parties acknowledge the Town collects, receives and retains $75 of the paid Notice of Violation (NOV) and $75 of the paid Uniform Traffic Citation (UTC) and the $2,000 retained upfront by the Town per Red Light Safety Camera System and Verra Mobility's monthly per Red Light Safety Camera System fee shall be calculated only on the $75 per paid Citation retained by the Town and shall not include any court or local magistrate fees. The Town shall ensure Verra Mobility receives a full accounting of all Program Revenue from paid Citations to allow for accurate invoicing each month.

Verra Mobility's Fees anticipate a standard Florida BOS configuration and a standard suite of notices as described in Subsection 1.2.3 of EXHIBIT B. For configuration or Program customization work in excess of the standard Florida BOS configuration, Verra Mobility shall provide Town with an hours estimate and, upon approval by Town for the work, shall invoice Town $200 per hour for such additional configuration or Program customization. Town and Verra Mobility recognize the standard Florida BOS provided, or to be provided, by Verra Mobility to Town may need to be changed during the term of the Agreement, at Verra Mobility's sole-discretion, due to end-of-life technology, and if such change is necessary Verra Mobility shall provide the new standard Florida BOS to Town at no additional charge, unless additional configurations or Program customization are requested by Town then the fee for additional configuration or Program customization will apply.

EXHIBIT B
SCOPE OF WORK

1. VERRA MOBILITY SCOPE OF WORK

1.1 VERRA MOBILITY IMPLEMENTATION

1.1.1 Verra Mobility agrees to provide Camera System(s), use of the BOS and related services to Town as outlined in this Agreement, excluding those items identified in Section 2 titled "Town Scope of Work". Verra Mobility and Town understand and agree that new or previously unforeseen requirements may, from time to time, be identified and that the parties shall negotiate in good faith to assign the proper party the responsibility and cost for such items. In general, if work is to be performed by Town, unless otherwise specified, Town shall not charge Verra Mobility for the cost.

1.1.2 Town and Verra Mobility will complete the Project Time Line within ninety (90) days of Agreement execution date, unless mutually agreed to otherwise by the parties. Verra Mobility agrees to make every effort to adhere to the Project Time Line.

1.1.3 Verra Mobility will install or deploy Camera System(s) at a number of Designated Safety Zones to be mutually agreed upon between Verra Mobility and Town as reflected in a written Notice to Proceed. In addition to any initial Designated Safety Zones, the parties may mutually agree to add additional Camera System(s) or Approaches, which shall also be reflected in a written Notice to Proceed as set forth in **EXHIBIT C**.

1.1.4 Site installation plans for fixed-site installations shall be prepared under the supervision of, approved and sealed by a licensed professional engineer licensed to perform engineering services in the state where the Camera Systems will be installed.

1.1.5 Verra Mobility shall not be responsible for, nor shall it perform, any engineering or traffic safety studies as may be desired by Town or required by laws applicable to Town.

1.1.6 Verra Mobility will operate each Camera System on a 24-hour basis, barring downtime for maintenance, normal servicing activities, or other unforeseen instances, unless enforcement times are restricted by law, such as in school zones.

1.1.7 Verra Mobility's Marketing Department will assist Town with public information content and outreach campaign strategies ("**Public Safety Campaign**").

1.1.8 Verra Mobility agrees to provide a secure website accessible to Owners/violators who have received notices of violation by means of a Notice # and PIN, which will allow Violation image and video viewing. Verra Mobility shall include a link to the payment website(s) and may offer the opportunity to download an affidavit of non-liability online. Verra Mobility will operate this secure website on a 24-hour basis, barring downtime for maintenance, normal servicing activities, or other unforeseen instances.

1.1.9 Verra Mobility will provide technician site visits to each Camera System, as needed, to perform maintenance checks consisting of camera enclosure lens cleaning; camera, strobe and controller enclosure cleaning; inspection of exposed wires; and, general system inspections and maintenance.

1.1.10 Verra Mobility shall take commercially reasonable best efforts to repair a non-functional System within seventy-two (72) hours (excluding weekends and holidays) of determination of a malfunction.

1.1.11 If Town is using Verra Mobility enabled lockbox or e-payment services, Town shall provide Verra Mobility and the applicable payment processor with the items set forth in Section 2.1.4 below.

1.1.12 Verra Mobility is authorized to charge, collect and retain a service/convenience fee of up to the greater of $5.00 or to 5% of the total payment, for each payment processed through the web, call center, IVR, or other electronic means. Such fee is paid by the payor and retained by Verra Mobility.

1.2 VERRA MOBILITY OPERATIONS

1.2.1 Verra Mobility shall operate the Program in accordance with Florida Statute §316.1896.

1.2.2 Verra Mobility shall implement and operate the Program in accordance with the provisions of this Agreement and the Town's Business Rules.

1.2.3 If a warning period is required, Verra Mobility shall provide Town with a one-time warning period up to thirty (30) days in length following the installation and activation of the first installed Camera System. Town shall not be charged a fee for the warning period; however for any warning period exceeding thirty (30) days, Town shall be responsible for the normal monthly Fee.

1.2.4 Verra Mobility shall provide Town with access to the BOS, including image processing, and printing and mailing of up to six (6) letters/ notices in support of Citation issuance and escalation. In the case of a transfer of liability by the Owner, the BOS shall be setup to mail a Citation to the driver identified in the affidavit of non-liability or identified by a rental car company. Costs of certified mailings are priced separately and paid by Town to Verra Mobility as indicated in **EXHIBIT A**.

1.2.5 Subsequent notices, other than those specified in Subsection 1.2.3 may be delivered by first class or other mail means for additional compensation to Verra Mobility as agreed upon by the parties.

1.2.6 Verra Mobility shall apply an electronic signature, name, or badge number to the Citation as authorized in the Town's Business Rules.

1.2.7 Verra Mobility may make non-substantive formatting or incidental changes to the Citation form without approval by Town.

1.2.8 Verra Mobility shall seek records from vehicle registration databases reasonably accessible to Verra Mobility through its limited agent relationship with Town and use such records to assist Town in processing Citations. Verra Mobility may mail Citations to the address of the Owner obtained through the DMV, obtained through the National Change of Address (NCOA) database provided by the United States Postal Service, or obtained through other means including but not limited to skip tracing. Verra Mobility reserves the right to pass-through to Town any cost increases imposed on Verra Mobility by DMV data sources.

1.2.9 The BOS shall provide Town with the ability to run and print standard system reports. Verra Mobility provides a suite of standard program reporting at no charge to clients with active Programs. Upon notice to Town, Verra Mobility reserves the right to modify the suite of standard program reporting available to Town, so long as such change applies generally to Towns with similar programs. Customized reporting services are available upon written request. The fee for such services shall be mutually agreed upon.

1.2.10 During the twelve (12) month period following the installation or deployment of the first Camera System, upon Verra Mobility's receipt of a written request from Town at least fourteen (14) calendar days in advance of a court proceeding, and if required by the court or prosecutor, Verra Mobility shall provide Town with or train a Town provided local expert witness to testify in court on matters relating to the accuracy, technical operations, and effectiveness of the Camera System or the BOS until judicial notice is taken. Town shall use its best efforts to obtain judicial notice as soon as possible. If a Verra Mobility expert witness is required more than two (2) times during the twelve (12) month period, Town shall reimburse Verra Mobility for any reasonable time and travel costs incurred for the additional dates.

1.2.11 In those instances where damage to a System (or sensors where applicable) is caused by (i) negligence on the part of Verra Mobility or its authorized agent(s), Verra Mobility shall bear the cost of repair or (ii) negligence or recklessness on the part of a driver or severe weather or other Force Majeure events, Verra Mobility and Town shall bear the cost of repair equally with Town reimbursing Verra Mobility for its portion of the cost of repair. For all other causes of damage,

including road construction, Town negligence, etc. Town shall reimburse Verra Mobility for the cost of repair.

1.2.12 Verra Mobility shall provide a help-line to assist Town with resolving any problems encountered regarding its Camera System and/or the BOS. The help-line shall function during Business Hours.

1.2.13 Verra Mobility will work with the Town and the Florida Department of Highway Safety and Motor Vehicles (FLDHSMV) on an automated process for registration-holds on delinquent unpaid Citations that were adjudicated by the Town's hearing officer and found liable and not paid by the due date provided by the hearing officer. Verra Mobility will provide the automated process to the Town within sixty (60) days after the BRQ has been completed and signed by the Town and all FLDHSMV required documents are completed by the Town. If Verra Mobility does not complete the automated registration-hold process within the timeframe provided in this Section, any delinquent unpaid Citations the Town collects through its own efforts shall be retained by the Town and shall not be applied towards Verra Mobility's fees.

2. TOWN SCOPE OF WORK

2.1 GENERAL IMPLEMENTATION REQUIREMENTS

2.1.1 Within seven (7) business days of the Effective Date of this Agreement, Town shall provide Verra Mobility with the name, title, mailing address, email address and phone number of all Town stakeholders, including:

- A project manager with authority to coordinate Town responsibilities under this Agreement;
- Court manager responsible for oversight of all Court-related program requirements;
- The police contact;
- The court contact;
- The person responsible for overseeing payments by violators (might be court);
- The prosecuting attorney;
- The Town attorney;
- The finance contact (who receives the invoices and will be in charge of reconciliation);
- The IT person for the police;
- The IT person for the courts;
- The public works and/or engineering contact responsible for issuing any/all permits for construction; and
- Court manager responsible for oversight of all Court-related program requirements.

2.1.2 Town and Verra Mobility shall complete the Project Time Line within sixty (60) calendar days of the Effective Date of this Agreement, unless mutually agreed to otherwise by the parties. Town shall make every effort to adhere to the Project Time Line.

2.1.3 As requested from time to time by Town, Verra Mobility will provide Town with a mock-up of the Citation and other notices within fifteen (15) days of a completed Business Rules Questionnaire. Town shall review the Citation and other notices to ensure conformity with the Laws applicable to Town. Except as outlined in Section 1.2.6, Verra Mobility shall not implement changes to the Citation or other notices without Town's prior review and sign-off. Town is responsible for the content of its Program notices, including but not limited to Citations.

2.1.4 Town intends to utilize Verra Mobility enabled payment processing channels. Town shall designate a Town account for deposit / settlement of funds paid by payors. Within seven (7) business days of receipt by Town, Town shall provide Verra Mobility completed banking forms and payment processing agreements, which may include among others a Participant Agreement and Submerchant Agreement with the payment processor as well as a bank verification letter prepared by the Town's settlement account's bank, application for payment processing, and a Form W-9, Request for Taxpayer Identification Number and Certification.

2.1.5 The Town shall provide Verra Mobility with documents delegating authority to Verra Mobility to send Program Revenue collected by the Town to certain accounts designated by the Town to satisfy the Town's obligations under:

(i) Red Light Camera Safety Camera System
(ii) School Safety Camera Speed Detection System F.S. § 316.1896(5)(b)
(iii) School Safety Camera Speed Detection System F.S. § 316.1896(5)(e)

2.1.6 Town shall direct the law enforcement agency to execute the Verra Mobility DMV Services Subscriber Authorization (substantially in the form attached as **EXHIBIT D**) to provide verification to the National Law Enforcement Telecommunications System (NLETS) indicating that Verra Mobility is acting on behalf of the Town for the purposes of accessing vehicle ownership data pursuant to the list of permissible uses delineated in the Drivers Privacy Protection Act 18 U.S.C. 2721, Section (b)(1). Access to registered owner information through National Law Enforcement Telecommunications System (NLETS) requires Town to provide Verra Mobility with a unique Town ORI. In order to access certain state departments of motor vehicles records directly (not through NLETS), agreements or applications directly between Town and the state DMV may be required by Town, including agreements requiring Town to comply with certain permissible use, privacy, and security requirements of the applicable state department of motor vehicle. If required, Town shall execute such agreements or applications with, participate in audits by, or provide certifications to state department of motor vehicles. If Town requires Verra Mobility to access registered owner information from sources other than NLETS

or direct through a state DMV, accessible to Verra Mobility at no cost, additional fees will apply.

2.1.7 Town shall prepare, execute, update, and maintain the Business Rules for implementation and operation of the Program. Town's failure to timely prepare the Business Rules may impact the Project Time Line or compliance of Town's Program with applicable laws. Verra Mobility shall not be liable for Town's failure to update and maintain the Business Rules. To the extent that there is a conflict between the Business Rules and Agreement, the Agreement shall govern.

2.1.8 Town is responsible for notifying Verra Mobility of any local legislative and/or ordinance changes in writing within forty-eight (48) hours of the first read of the proposed legislation. Verra Mobility will not be responsible for complying with any change in applicable local law, until such time as Verra Mobility has been notified by Town in writing of the change in Law and, if applicable, Town's Business Rules have been updated by Town. In the event of a change in or adoption of a new Law, excluding a change in Town's local law, which would increase the cost of Verra Mobility's provision of the Services, Verra Mobility may propose a Fee increase to Town. If the parties cannot mutually agree on the Fee change, Verra Mobility may terminate this Agreement. In the event of a change in or adoption of a local law of Town, which would increase the cost of Verra Mobility's provision of the Services, Verra Mobility shall provide Town with a Fee increase consistent with Verra Mobility's increased operating cost, and Town shall be obligated to pay such increased Fees.

2.1.9 Town is responsible for all final jurisdictional issues, including but not limited to as they pertain to issuance of Citations, adjudication of Violations, and intergovernmental authorities.

2.1.10 Once a Notice to Proceed is granted to Verra Mobility in writing, Town shall not issue a stop work order to suspend activity on the implementation process, unless Town reimburses Verra Mobility for costs incurred up to the date the stop work order is issued.

2.1.11 Town will comply with all applicable Laws relating to its conduct with respect to the Program. Town shall not use the Camera Systems, the BOS, or the data captured by the Camera Systems or provided by NLETs or DMV data source providers for any purpose not permitted by Law.

2.1.12 Once a Camera System is installed and certified by Verra Mobility as operational, it shall be immediately put into service at the next available enforcement period or as otherwise mutually agreed to by the Parties.

2.1.13 Town shall process each Event in accordance with state law and/or municipality ordinances within three (3) business days of its appearance in the law enforcement review queue, using the BOS to determine which Events constitute Violations that will be issued as Citations. In the event that Town fails to process Events within

this timeframe, Verra Mobility shall not be liable for failure of the BOS to allow Town to issue a notice or Citation within statutory timeframes.

2.1.14 In the event that remote access to the BOS is blocked by Town network security infrastructure, Town's Department of Information Technology shall coordinate with Verra Mobility to facilitate appropriate communications while maintaining required security measures.

2.1.15 Town shall be responsible for any reporting obligations that it has to any state or other regulatory body with respect to its operation of the Program or the payment of Citations.

2.2 STREETS AND TRAFFIC DEPARTMENT OPERATIONS

2.2.1 All Fixed Camera Systems are intended to remain installed for the duration of the Agreement. If Town requests that Verra Mobility move a Fixed Camera System after initial installation, Town shall pay for the total cost to relocate the System.

2.2.2 Prior to the installation of any System, Town shall provide Verra Mobility information regarding any and all road construction or improvement projects scheduled during the term of this Agreement for any Approach designated for System installation. In addition, within thirty (30) days of becoming aware of anticipated construction that may result in the deactivation or removal of a System or otherwise impact an Approach during the term of this Agreement, Town shall notify Verra Mobility of any such construction.

2.2.3 Town will design, fabricate, install and maintain camera warning signs required by Law for purposes of operating the Program. If Town cannot provide such signage, Verra Mobility will do so, and Town shall reimburse Verra Mobility for such costs. Even if Verra Mobility provides such signage, Town shall remain responsible for maintaining such signage in compliance with applicable Laws. Town is responsible for determining the placement/location of signs in compliance with applicable Laws.

2.2.4 Town understands that proper operation of the Red Light Camera Safety Systems requires access to traffic signal phase connections. Town, therefore, shall provide access to traffic signal phase connections according to approved design. When traffic signal phase connections are not under the jurisdiction of Town, it shall be Town's responsibility to negotiate agreements with the owner or maintaining agency of the traffic signal controller and infrastructure in order to provide the required access to said phase connections and infrastructure and any costs associated with needed agreements shall be funded by Town.

2.2.5 Town understands that proper operation of the Red Light Camera Safety System sometimes requires attachment of certain items of detection equipment to existing signal masts, mast arms and/or other street furniture. Town, therefore, shall provide

access to Verra Mobility to attach certain items of detection equipment to existing signal masts, mast arms and / or other street furniture if required for the proper operation of the System.

2.2.6 Town shall allow Verra Mobility to access power from existing power sources at no cost and, if applicable, shall allow or facilitate access to traffic signal phase connections to a pull box, pole base, or controller cabinet nearest to each System within Town's jurisdiction. If these items are not made available, the costs of any additional conduit or power infrastructure needed to support installation of the Camera System shall be funded by Town. Verra Mobility may agree to cover these upfront costs and separately bill Town through the monthly invoice over a period not to exceed one year. If existing power sources are not immediately available, Town will allow Verra Mobility to use temporary power until the existing power is established. In situations where it is not possible to obtain electrical power from a pre-existing source, Town shall bear the costs (or reimburse Verra Mobility) for obtaining/routing power. When access to power facilities is not under the jurisdiction of Town, it shall be Town's responsibility to negotiate any necessary agreements with the owner or maintaining agency of the power facility and infrastructure in order to provide required access to said power facilities and infrastructure. Any costs associated with the needed agreements shall be funded by Town.

2.2.7 Town shall approve or reject site plans submitted Verra Mobility within seven (7) business days of receipt. Town shall use best efforts to ensure that the total duration between submittal and finalization does not exceed ten (10) days for plan approvals when plans are being reviewed and permitted by any state, county, and/or local agencies.

2.2.8 Town, or any department of Town, shall not charge Verra Mobility or its subcontractor(s) for building, construction, electrical, street use and/or pole attachment permits, including any fee for traffic control services and permits during installation or maintenance of a System. Town shall also apply for, when in Town's name, or coordinate the application for, when in the name of a Town agency, school, or school district, and fund any and all needed state, local, and/or county permits, including any traffic control permits.

2.2.9 Town shall issue all needed permits to Verra Mobility and its subcontractor(s) within seven (7) business days of plan approval. Town shall provide its best efforts to aid in achieving these timeframes for permit issuance when permitted by any state, local, and/or county agency.

2.2.10 If required by the submitted design plan for proper operation, Town shall allow Verra Mobility to install vehicle detection sensors in the pavement of roadways within Town's jurisdiction. Town shall provide its best efforts to aid in acquiring any and all required permission and permits when the roadway is under the jurisdiction of the state or county.

2.2.11 Town shall allow Verra Mobility to build Infrastructure into any existing Town-owned easement.

2.2.12 If use of private property right-of-way is needed, Town shall assist Verra Mobility in acquiring permission to build in existing utility easements as necessary. Any costs for private property right-of-way lease/rental costs shall be borne by Town as it is expressly excluded from the base fee structure identified in the fee schedule.

2.2.13 Town shall be responsible for the performance of any engineering or traffic safety studies as may be desired by Town or required by laws applicable to Town.

2.3 COURTS OPERATIONS

2.3.1 Town is only responsible for the initial prosecution and adjudication of Citations in accordance with all applicable Laws. The Town has full discretion on how it will handle any appeals.

2.3.2 Town shall provide a judge or hearing officer and court facilities to schedule and hear disputed Citations.

2.3.3 Town shall handle inbound and outbound phone calls and correspondence from defendants who have questions about disputes and other issues relating to Citation adjudication.

2.3.4 Verra Mobility shall provide Town with access to its online BOS adjudication processing module which will enable the adjudication function to review cases, related images, and other related information required to adjudicate disputed Citations. If instead of using the online adjudication processing module in the BOS, Town desires to integrate Verra Mobility data into its adjudication system, subject to feasibility, Verra Mobility shall provide a court interface. Verra Mobility shall provide a price proposal to Town for the development of any such court interface.

2.3.5 Town is responsible for entering all final dispositions of Citations including all payments of Citations into the BOS, either directly through the online adjudication processing module or through the court interface.

3. <u>ADDITIONAL SERVICES</u>

3.1 ENHANCED VIDEO SERVICES

3.1.1 Verra Mobility shall provide video enhancements that permit Town to perform remote video retrieval, at each fixed Approach ("Enhanced Video Services"), known as Verra Mobility Live™. Town is responsible for and will pay for any of its data storage costs or other usage-based costs that it may incur in connection with its use of the Enhanced Video Services. Town agrees to comply with all Laws with

respect to its access to and use of the Enhanced Video Services, including without limitation any Laws relating to data privacy or photo enforcement.

3.1.2 Town expressly acknowledges that Verra Mobility is under no obligation to retain for any period of time any data produced by the Enhanced Video Services. Town acknowledges that once it obtains a requested video file, it is responsible for any preservation, and associated storage requirements that may be required by Law for the video file. Town agrees that since the requested video file is not required by Verra Mobility to continue to perform the services under the Agreement, the video file and any resulting public records shall be transferred to the Town prior to the termination of the Agreement and the Town shall serve as the records custodian for any public records created. Town agrees to assume responsibility to respond to, and if appropriate defend, at its sole expense, any requests for data or information obtained through the Enhanced Video Services, whether by formal public records request or otherwise. Verra Mobility shall not be responsible for any storage, storage costs or public records requests pertaining to the historical video obtained through the Enhanced Video Services or the provision of access to the Enhanced Video Services to anyone other than Town.

3.1.3 Town hereby agrees to indemnify and defend Verra Mobility Parties to the fullest extent permitted by applicable Law against any and all Losses which may be imposed on or incurred by any Verra Mobility Party arising out of or related to: (a) Town's use of the Enhanced Video Services; (b) Town's misuse of or failure to maintain the security of the data access through the Enhanced Video Services; (c) Town's violation of any Laws; and (d) any breach of this Agreement by Town related to Town's use of the Enhanced Video Services. The Town expressly retains all rights, benefits and immunities of sovereign immunity in accordance with section 768.28, Florida Statutes, as amended. Notwithstanding anything set forth in the Contract to the contrary, nothing in this Contract shall be deemed as a waiver of immunity or limits of liability of the Town beyond any statutory limited waiver of immunity or limits of liability which may have been or may be adopted by the Florida Legislature and the cap on the amount and liability of the Town for damages, regardless of the number or nature of claims in tort, equity, or Contract, shall not exceed the dollar amount set by the legislature for tort. Nothing in this Contract shall inure to the benefit of any third party for the purpose of allowing any claim against the Town, which claim would otherwise be barred under the doctrine of sovereign immunity or by operation of law.

3.1.4 Town agrees the Enhanced Video Services shall be subject to the following: (i) historical video is stored at the Camera site for a minimum time period of 30 days; (ii) requested video files pursuant to the Enhanced Video Services will be available for Town download within 1 business day of request and will be available for retrieval for a minimum time period of 30 days; (iii) video file requests from historical video are limited to 30 minutes; if additional footage is required, additional requests may be made by Town.

If Verra Mobility increases the Enhanced Video Services video storage, to a minimum time period greater than 30 days, the Town shall automatically receive that additional time storage benefit.

3.2 AUTOMATIC LICENSE PLATE RECOGNITION INTERFACE SOLUTION

3.2.1 If authorized by Law, in cooperation with the Town's current ALPR provider, Verra Mobility will configure the Red Light Safety Camera System, Fixed Speed Safety Camera System and the Transportable Speed Safety Camera system to interface with the Town's ALPR provider's back-office solution (referred to herein as "ALPR Interface Solution").

3.2.2 Town will comply with all applicable Laws, including without limitation to the extent applicable Criminal Justice Information Services (CJIS) requirements, any Laws relating to data privacy, or any Laws applicable its conduct with respect to the ALPR Interface Solution.

3.2.3 Town acknowledges that the ALPR Interface Solution includes intellectual property owned by Verra Mobility and no ownership rights to the intellectual property are transferred to Town by this Agreement. Town shall not: (a) decompile, disassemble, or otherwise reverse engineer the ALPR Interface Solution or attempt to reconstruct or discover any source code, underlying algorithms, file formats or programming interfaces of the ALPR Interface Solution by any means whatsoever (except and only to the extent that applicable Law prohibits or restricts reverse engineering restrictions); (b) remove any product identification, proprietary, copyright or other notices contained in the ALPR Interface Solution; or (c) modify any part of the ALPR Interface Solution, create a derivative work of any part of the ALPR Interface Solution, or incorporate any part of the ALPR Interface Solution into or with other software, except to the extent expressly authorized in writing by Verra Mobility, including through other agreements between the parties.

3.2.4 Town shall provide Verra Mobility with copies of any Town policies pertaining to its use of the ALPR Interface Solution, which are applicable to Verra Mobility. Verra Mobility shall be afforded a reasonable opportunity to review such policies and will notify Town if there are any additional Fees associated with compliance to the policies.

3.2.5 Verra Mobility will collaborate with Town on a mutually agreeable project schedule outlining all of the milestones required to implement the ALPR Interface Solution.

3.2.6 Notwithstanding anything else to the contrary in this Agreement, Town agrees that Town is solely responsible for the housing and security of all data provided through the ALPR Interface Solution. Town expressly acknowledges that Verra Mobility is under no obligation to retain for any period of time any data produced by the ALPR Interface Solution. Town acknowledges that for the ALPR Interface Solution data, it is responsible for any preservation, and associated storage requirements that may

be required by Law. Town agrees to assume responsibility to respond to, and if appropriate defend, at its sole expense, any requests for ALPR Interface Solution data obtained through the ALPR Interface Solution, whether by formal public records request or otherwise.

3.2.7 The Town will provide the necessary IT staff and resources necessary to assist Verra Mobility, and the Town's ALPR provider, with the implementation of the ALPR Interface Solution.

3.2.8 Any additional hardware, software, licensing, resources, installation, support and maintenance required to make the provided ALPR Interface Solution compatible and compliant with Town IT, security, privacy, compliance, or other requirements are the responsibility of Town.

3.2.9 Town shall notify Verra Mobility within twenty-four (24) hours of detecting any performance issues with the ALPR Interface Solution.

3.2.10 Upon the termination of the Agreement between Verra Mobility and the Town, Verra Mobility shall have no further obligations to Town regarding the ALPR Interface Solution.

3.2.11 Under all circumstances, Verra Mobility shall retain ownership of the ALPR Interface Solution provided for use by Town under the terms and conditions of this Agreement. Verra Mobility shall retain the ownership rights to all metadata, business intelligence, or other analytics obtained, gathered, or mined by Verra Mobility from the data captured by the ALPR Interface Solution. Furthermore, Verra Mobility has the right to use non-personalized and aggregated ALPR Interface Solution data for its internal business purposes, analytics, statistical analysis, and to perform analyses which would further Town's program.

3.2.12 Town hereby agrees to indemnify and defend Verra Mobility Parties to the fullest extent permitted by applicable Law against any and all Losses which may be imposed on or incurred by any Verra Mobility Party arising out of or related to: (a) Town's use of the ALPR Interface Solution, (b) Town's misuse of or failure to maintain the security of ALPR Interface Solution data in its possession; (c) Town's violation of any Laws; (d) Town's misuse or misappropriation of a Verra Mobility products or services; and (e) any breach of this Agreement by Town related to Town's use of the ALPR Interface Solution, or ALPR Interface Solution Data. The Town expressly retains all rights, benefits and immunities of sovereign immunity in accordance with section 768.28, Florida Statutes, as amended. Notwithstanding anything set forth in the Contract to the contrary, nothing in this Contract shall be deemed as a waiver of immunity or limits of liability of the Town beyond any statutory limited waiver of immunity or limits of liability which may have been or may be adopted by the Florida Legislature and the cap on the amount and liability of the Town for damages, regardless of the number or nature of claims in tort, equity, or Contract, shall not exceed the dollar amount set by the legislature for tort. Nothing in this Contract shall inure to the benefit of any third party for the purpose

of allowing any claim against the Town, which claim would otherwise be barred under the doctrine of sovereign immunity or by operation of law.

EXCEPT AS PROVIDED IN THIS AGREEMENT, THE PARTIES ACKNOWLEDGE THAT THE ALPR INTERFACE SOLUTION AND RELATED SERVICES ARE PROVIDED BY VERRA MOBILITY "AS IS" AND WITHOUT WARRANTY OF ANY KIND, AND VERRA MOBILITY EXPRESSLY DISCLAIMS ALL OTHER WARRANTIES RELATING TO THE ALPR INTERFACE SOLUTION, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, ANY WARRANTIES AGAINST INFRINGEMENT OF THIRD-PARTY RIGHTS, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

3.3 **CAMERA SYSTEM UPGRADE**

3.3.1 If, at any time, Verra Mobility upgrades their Camera Systems such as including LPR technology, the new technology shall be offered to upgrade the current Camera Systems in the Town at no cost to the Town. This only applies to upgrades Verra Mobility offers at no cost and if any costs are involved the parties must agree to such costs in writing through an amendment to this Agreement.

EXHIBIT C
FORM OF NOTICE TO PROCEED

Reference is made to the Professional Services Agreement by and between American Traffic Solutions, Inc., doing business as Verra Mobility ("Verra Mobility") and Town of Davie ("Town"), dated as of [date] (the "Agreement"). Capitalized terms used in this Notice to Proceed shall have the meaning given to such term in the Agreement.

Town hereby designates this implementation of Systems at the Approaches listed below. Verra Mobility shall make its best efforts to install a System within sixty (60) days of permits being granted and power delivered for each agreed-upon Approach, providing that Town has received permission for all implementations in writing from any third-party sources.

Below is a list of Approaches provided by Town, which have been analyzed based on traffic volumes, road geometry, and existing infrastructure and are believed to be locations at which a System would increase public safety.

Execution of this Notice to Proceed by Town shall serve as authorization for the installation of Systems for all Approaches designated as follows:

Approach (Direction and Roadway)	Type of Enforcement	Camera System Solution (# of Cameras per Approach)

Town understands that implementation and installation of any Approach is subject to Site Selection Analysis and engineering results.

Town recognizes the substantial upfront costs Verra Mobility will incur to construct and install the Systems for the above listed Approaches. Town agrees that the Systems authorized by this Notice to Proceed for the above-listed Approaches shall remain installed and operational for the duration of the current term of the Agreement. Verra Mobility reserves the right to bill Town for any upfront costs associated with the Approaches listed above in the event Town elects to cancel or suspend the installation.

IN WITNESS WHEREOF, Town has executed this Notice to Proceed as of the date written below.

TOWN OF DAVIE

By: _____

Name: Date

Title:

AMERICAN TRAFFIC SOLUTIONS, INC.

By: _____

Name: Date

Title:

EXHIBIT D
DMV SERVICES SUBSCRIBER AUTHORIZATION

Date_____

Frank L. Minice, Executive Director/CEO
National Law Enforcement Telecommunications System, Inc. (NLETS)
1918 W. Whispering Wind Drive
Phoenix, AZ 85085

Dear Mr. Minice:

Re: Authorization for ORI Code: FL0061200

The TOWN authorizes American Traffic Solutions, Inc. dba. Verra Mobility to use the TOWN ORI CODE for the limited purpose of obtaining vehicle registration information through NLETS.

This letter acknowledges that a contract to perform automated enforcement between the TOWN and American Traffic Solutions, Inc., doing business as Verra Mobility ("Verra Mobility") is in force. As a requirement of and in performance of that contract between the TOWN and Verra Mobility, it will be necessary for Verra Mobility to access Nlets for motor vehicle data on our agency's behalf.

This program will operate within the Axsis environment under partner ORI Number FL0061200.

Please accept this letter as authorization from the TOWN for Verra Mobility to run motor vehicle inquires for this purpose. This authorization will automatically expire upon the termination of the contract between TOWN and Verra Mobility; and,such authorization is limited to violations detected by the automated enforcement camera systems.

By completing the information below and signing this letter, I am stating that I am a member of and have the authority to extend this authorization on behalf of the TOWN.

SUBSCRIBER INFORMATION

Subscriber Agency/Name _____
Nlets Agency ORI _____
Name/Title of Authorized Representative _____
Mailing Address _____
_____
_____

Telephone _____ **Fax** _____
Email _____
Signature of Authorized Representative _____
Date Signed _____

EXHIBIT E
RETENTION SCHEDULE***

[*This schedule to be completed by Town in conformity with their applicable state and local law prior to execution of the Agreement.*]

Type of Record	Minimum Verra Mobility Retention Period
Violation Images* (including video clips and related metadata)	5 years from payment or final adjudication
Non-Violation Event Images (including video clips and related metadata)**	90 days from Event capture date
Warning Notice Images (including video clips and related metadata)	90 days from issuance date
Individually Identifiable Violation Records*	5 years from payment or final adjudication
Individually Identifiable Non-Violation Event Records**	90 days from Event capture date
Audio recording from contact center	90 days from call
Written correspondence with citizens regarding Violations	5 years from payment or final adjudication
Camera System Calibration/Certification Records	3 months from payment or final adjudication of an applicable Violation
Maintenance Records	3 months from payment or final adjudication of an applicable Violation
Other Program Records	5 years from termination of the Agreement

* Violation Image: an image of a Violation issued as a Citation.
Individually Identifiable Violation Records: a record containing individually identifiable information pertaining to a Violation issued as a Citation.
Final Adjudication: Includes the applicable appeal timeframe and any appellate cases.

** Non-Violation Event Image: an image of an Event not issued as a Citation.
Individually Identifiable Non-Violation Records: a record containing individually identifiable information pertaining to an Event not issued as a Citation.

*** Retention period is not applicable upon termination of the Agreement and the data is provided to Town pursuant to Section 16 of the Agreement.

This records retention schedule does not apply to any Event data captured by the Camera System, but not uploaded into BOS. For the avoidance of doubt, this records retention schedule does not apply to any records related to any Pilot Data.

EXHIBIT F
SYSTEM LOCATIONS

SECTION 1. RED LIGHT CAMERA SAFETY SYSTEMS

CAMERA IDENTIFICATION	LOCATION	NUMBER OF CAMERAS
DAV01	NB SR 7 / US 441 AT GRIFFIN RD / SR818	1
DAV02	SB SR 7 / US 441 AT GRIFFIN RD / SR818	1
DAV06	NB SR 7 / US 441 AT ORANGE DR / SW 45 ST	1
DAV10	NB SR 817 / S UNIVERSITY DR AT NOVA DRIVE	1
DAV17	EB STIRLING RD / SR 848 AT DAVIE RD EXTENSION / DAVIE RD	1
DAV19	SB UNIVERSITY DR / SR 817 AT STIRLING ROAD / SR 848	1
DAV20	WB STIRLING RD / SR 848 AT UNIVERSITY DR / SR 817	1
DAV22	NB KOLSKY BLVD AT UNIVERSITY DR (Expansion site)	1
DAV23	SB KOLSKY BLVD AT UNIVERSITY DR (Expansion site)	1
DAV24	NB UNIVERSITY DR AT GRIFFIN RD (Expansion Site)	1
DAV25	SB UNIVERSITY DR AT GRIFFIN RD (Expansion site)	1

SECTION 2. SCHOOL ZONE SPEED DETECTION SYSTEM

SCHOOL	LOCATION	NUMBER OF CAMERAS
INDIAN RIDGE MIDDLE SCHOOL	NORTHBOUND NOB HILL ROAD	1
INDIAN RIDGE MIDDLE SCHOOL	SOUTHBOUND NOB HILL ROAD	1
FLAMINGO ELEMENTARY SCHOOL	NORTHBOUND SW 133 AVENUE	1
FLAMINGO ELEMENTARY SCHOOL	SOUTHBOUND SW 133 AVENUE	1

FLAMINGO ELEMENTARY SCHOOL	EASTBOUND SW 130 AVENUE	1
FLAMINGO ELEMENTARY SCHOOL	WESTBOUND SW 130 AVENUE	1
NOVA EISENHOWER ELEMENTRAY SCHOOL	DAVIE ROAD NORTHBOUND	1
NOVA EISENHOWER ELEMENTRAY SCHOOL	DAVIE ROAD SOUTHBOUND	1
NOVA EISENHOWER ELEMENTRAY SCHOOL	SW 39 STREET EASTBOUND	1
NOVA EISENHOWER ELEMENTRAY SCHOOL	SW 39 STREET WESTBOUND	1
FOX TRAIL ELEMENTARY SCHOOL	NORTHBOUND NOB HILL ROAD	1
FOX TRAIL ELEMENTARY SCHOOL	SOUTHBOUND NOB HILL ROAD	1
NOVA HIGH SCHOOL	SW 39 STREET WESTBOUND	1
NOVA HIGH SCHOOL	SW 39 STREET EASTBOUND	1
NOVA HIGH SCHOOL	COLLEGE AVENUE NORTHBOUND	1
NOVA HIGH SCHOOL	COLLEGE AVENUE SOUTHBOUND	1
WESTERN HIGH SCHOOL	SW 133 AVE NORTHBOUND	1
WESTERN HIGH SCHOOL	SW 133 AVE SOUTHBOUND	1
WESTERN HIGH SCHOOL	SW 136 AVE NORTHBOUND	1
WESTERN HIGH SCHOOL	SW 136 AVE SOUTHBOUND	1
WESTERN HIGH SCHOOL	SHENANDOAH PARKWAY NORTHBOUND	1
WESTERN HIGH SCHOOL	SHENANDOAH PARKWAY SOUTHBOUND	1
NOVA MIDDLE SCHOOL	COLLEGE AVENUE NORTHBOUND	1
NOVA MIDDLE SCHOOL	COLLEGE AVENUE SOUTHBOUND	1
NOVA MIDDLE SCHOOL	SW 39 STREET EASTBOUND	1
NOVA MIDDLE SCHOOL	SW 39 STREET WESTBOUND	1
HAWKS BLUFF ELEMENTARY SCHOOL	STIRLING ROAD EASTBOUND	1
HAWKS BLUFF ELEMENTARY SCHOOL	STIRLING ROAD WESTBOUND	1
HAWKS BLUFF ELEMENTARY SCHOOL	DYKES ROAD NORTHBOUND	1
HAWKS BLUFF ELEMENTARY SCHOOL	DYKES ROAD SOUTHBOUND	1
DAVIE ELEMENTARY SCHOOL	SW 39 STREET EASTBOUND	1
DAVIE ELEMENTARY SCHOOL	SW 39 STREET WESTBOUND	1

SILVER RIDGE ELEMENTARY SCHOOL	SW 36 STREET WESTBOUND	1
SILVER RIDGE ELEMENTARY SCHOOL	SW 92 AVENUE NORTHBOUND	1
NOVA BLANCHE ELEMENTRAY SCHOOL	DAVIE ROAD NORTHBOUND	1
NOVA BLANCHE ELEMENTRAY SCHOOL	DAVIE ROAD SOUTHBOUND	1
NSU UNIVERSITY SCHOOL	SW 30 STREET EASTBOUND	1
NSU UNIVERSITY SCHOOL	SW 30 STREET SOUTHBOUND	1
SAINT DAVID CATHOLIC SCHOOL	SW 39 STREET EASTBOUND	1
SAINT DAVID CATHOLIC SCHOOL	SW 39 STREET WESTBOUND	1
SAINT BONAVENTURE CATHOLIC SCHOOL	SW 14 STREET EASTBOUND	1
SAINT BONAVENTURE CATHOLIC SCHOOL	SW 14 STREET WESTBOUND	1
SAINT BONAVENTURE CATHOLIC SCHOOL	SW 136 AVE NORTHBOUND	1
SAINT BONAVENTURE CATHOLIC SCHOOL	SW 136 AVE SOUTHBOUND	1
SOMERSET ACADEMY ELEMENTARY CHARTER SCHOOL	DAVIE ROAD NORTHBOUND	1
SOMERSET ACADEMY ELEMENTARY CHARTER SCHOOL	DAVIE ROAD SOUTHBOUND	1
GREEN TREE PREPARATORY CHARTER SCHOOL	DYKES ROAD NORTHBOUND	1
GREEN TREE PREPARATORY CHARTER SCHOOL	DYKES ROAD SOUTHBOUND	1
AEF SCHOOL OF DAVIE	SW 61 AVE NORTHBOUND	1
AEF SCHOOL OF DAVIE	SW 61 AVE SOUTHBOUND	1